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24-CIV-03114

TIFFANY BARNETT VS. LAUREN TALIVAA, ET AL

TIFFANY BARNETT
LAUREN TALIVAA

MATTHEW MATERN
MICHELLE FREEMAN

DEFENDANT SOUTHWEST AIRLINES CO.'S MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET FOUR AND FORM INTERROGATORY NO. 12.3

TENTATIVE RULING:

For the reasons stated below, Defendant Southwest Airlines Co.'s motion to compel further responses to Request for Production, Set Four, No. 69, and Form Interrogatory—General, Set One, No. 12.3, is **DENIED**.

California's work-product doctrine is codified in Code of Civil Procedure section 2018.030, which establishes two tiers of protection. Subdivision (a) provides absolute protection: "A writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances." (Code Civ. Proc., § 2018.030, subd. (a).) Subdivision (b) provides qualified protection for other attorney work product, making it discoverable only if the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense, or will result in an injustice. (Code Civ. Proc., § 2018.030, subd. (b).) The Legislature's declared policy is to encourage attorneys to prepare their cases thoroughly and to prevent attorneys from taking undue advantage of their adversary's industry and efforts. (Code Civ. Proc., § 2018.020.)

The California Supreme Court addressed the work-product status of attorney-obtained witness statements in *Coito v. Superior Court* (2012) 54 Cal.4th 480. The Court held that "a witness statement obtained through an attorney-directed interview is entitled as a matter of law to at least qualified work product protection." (*Id.* at p. 499.) This baseline protection applies regardless of whether the attorney exercised selectivity in choosing which witnesses to interview because the attorney has expended time and effort identifying and locating each witness, securing the witness's willingness to speak, listening to the witness, and preserving the witness's statement. (*Id.* at p. 496.) By contrast, a statement independently prepared by a witness does not become protected work product merely because it is later transmitted to an attorney. (*Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal.App.4th 214.)

Coito held that attorney-prepared witness statements are not automatically entitled to absolute protection as a matter of law; rather, "the applicability of absolute protection must be determined case by case." (*Coito, supra*, 54 Cal.4th at p. 495.) Absolute protection applies when the content of a declaration would reveal the attorney's impressions, conclusions, opinions, legal research, or theories, including where "the questions that the attorney has chosen to ask, or not ask, provide a window into the attorney's theory of the case or the attorney's evaluation of what issues are most important." (*Ibid.*) To invoke absolute protection, the attorney resisting discovery must make a preliminary or foundational showing that disclosure would reveal counsel's impressions, conclusions, opinions, legal research, or theories. (*Id.* at pp. 495–496.) Upon an adequate

showing, the trial court may conduct an in camera inspection, if necessary, to determine whether absolute work-product protection applies to some or all of the material. (Id. at p. 496.)

For qualified work product, a bare showing of good cause is insufficient to compel production. Rather, disclosure may be ordered only if the party seeking discovery carries the heavier burden of demonstrating unfair prejudice or injustice. (*People v. Hunter* (2017) 15 Cal.App.5th 163, 182.) Coito similarly explains that “a showing that a witness is no longer available or accessible, or some other showing of unfair prejudice or injustice” is necessary to overcome qualified work-product protection. (Coito, *supra*, 54 Cal.4th at p. 496.)

Here, Defendant Southwest Airlines Co. seeks a further response to Request for Production, Set Four, No. 69, which requests “[a]ll statements from any witnesses related in any way to the allegations in your Complaint.” (Separate Statement in Support of Motion, p. 2.) Plaintiff objected on several grounds, including attorney-client privilege and attorney work product, and responded as follows:

With respect solely to witness statement[s] obtained by Plaintiff Tiffany Barnett personally, she is not in possession, custody, or control of any responsive documents. Discovery and investigation are ongoing. Plaintiff reserves the right to supplement and/or amend the response to this request, while denying any obligation to do so.

(Separate Statement in Support of Opposition, p. 2.)

Plaintiff produced a privilege log relevant to the responses at issue on November 18, 2025. (Sabourian Decl., ¶ 12.) Plaintiff’s counsel states that, using information provided by Plaintiff and information obtained in discovery, counsel’s office drafted questions for witnesses to answer. Counsel further states that his office interviewed certain witnesses whose responses were recorded and/or used to create written declarations based on the witnesses’ statements. (Id., ¶ 13.) Plaintiff argues that those declarations are entitled to absolute protection because they reflect counsel’s impressions, conclusions, opinions, legal research, or theories. (Opp., p. 4:13–14.)

Defendant responds that Plaintiff’s showing is insufficient to establish absolute protection because counsel does not state that the witness statements are intertwined with counsel’s explicit comments or notes, does not state that the questions asked reveal counsel’s theory or evaluation of the case, and because declarations produced in a related federal case allegedly contain factual statements rather than expressions of counsel’s opinion. (Reply, p. 3:13–27.)

The Court finds Plaintiff’s showing sufficient. Factual statements by witnesses in attorney-drafted declarations may “provide a window into the attorney’s theory of the case or the attorney’s evaluation of what issues are most important” because the factual content is necessarily shaped by the questions counsel chose to ask. (Coito, *supra*, 54 Cal.4th at p. 495.) Here, the evidence shows that the witness declarations at issue resulted from attorney-drafted questions and attorney-directed interviews, and were prepared by counsel’s office. Disclosure would reveal counsel’s selection of witnesses, counsel’s chosen areas of inquiry, and counsel’s evaluation of the issues most important to Plaintiff’s case. Absolute work-product protection therefore applies.

Defendant also argues that Plaintiff waived work-product protection by “ostensibly” relying on the witnesses whose declarations were obtained. (Reply, p. 6:24–28.) No such reliance has been demonstrated. Accordingly, there has been no waiver.

The motion is therefore **DENIED** as to Request for Production, Set Four, No. 69.

With respect to Form Interrogatory—General, Set One, No. 12.3, Defendant seeks information about written or recorded statements obtained by Plaintiff. The same analysis applies because the interrogatory seeks information about attorney-work-product-protected declarations and would reveal which witnesses Plaintiff’s counsel chose to interview. *Coito* held that “in some cases, the very fact that the attorney has chosen to interview a particular witness may disclose important tactical or evaluative information, perhaps especially so in cases involving a multitude of witnesses.” (*Coito, supra*, 54 Cal.4th at p. 495.) Here, counsel selected certain witnesses based on information provided by Plaintiff and information obtained in discovery. Requiring a further response to Form Interrogatory No. 12.3 would reveal tactical or evaluative information protected by the work-product doctrine. (Sabourian Decl., ¶ 13.)

The motion is therefore **DENIED** as to Form Interrogatory—General, Set One, No. 12.3.

SANCTIONS

The Court finds that Defendant had substantial justification for bringing the motion because it presented close legal issues regarding whether the witness statements, the contents of which were unknown to Defendant, are entitled to absolute or qualified work-product protection. Plaintiff’s request for monetary sanctions is therefore **DENIED**.

If this tentative ruling is uncontested, it shall become the order of the Court. Counsel for Plaintiff shall prepare a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall give notice of ruling as required by law.

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25-CIV-05293

GLORIA SANCHEZ NGUYEN VS. GOODWILL OF THE SAN FRANCISCO BAY, A CALIFORNIA CORPORATION

GLORIA SANCHEZ NGUYEN

GOODWILL OF THE SAN FRANCISCO BAY, A CALIFORNIA CORPORATION

PARVIZ DARABI

MICHAEL A. WERTHEIM

PLAINTIFF GLORIA NGUYEN'S MOTION TO BE RELIEVED AS COUNSEL OF RECORD

TENTATIVE RULING:

The unopposed motion of Parviz Darabi to be relieved as counsel of record for Plaintiff Gloria Sanchez Nguyen is **GRANTED**. Pursuant to California Rules of Court, rule 3.1362(e), the order relieving counsel does not become effective until proof of service of a copy of the signed order on the client has been filed with the Court.